

21STCV37584 21STCV37584

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-07-21

Motion: PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C733%2C07%2F21%2F2026

Source SHA-256: 1d1eedc43307599e1288a4ea7d58b616d1b517448f97b6630ddd2acbd6cbaafb

Case Number: 21STCV37584 Hearing Date: July 21, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

JUDITH

SMITH, an individual,

Plaintiff,

vs.

LAST PROPERTY MANGMNT, LLC; and DOES 1 through 100,

Inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

CASE

NO.: 21STCV37584

[TENTATIVE] ORDER RE: PLAINTIFF'S
MOTION TO ENFORCE SETTLEMENT

Dept. 733

8:30 a.m.

July 21, 2026

I.

INTRODUCTION

This case arises alleged
habitability issues at the residential property located at 12251

Osborne St #103, Pacoima, CA 91331
(the "Property") during Plaintiff's tenancy.

On

October 12, 2021, Plaintiffs Judith Smith and Betty Smith initiated this
action.

On

March 3, 2022, Plaintiff Judith Smith ("Plaintiff") filed a first amended
complaint ("FAC") against Defendant Last Property Mangmnt, LLC ("Defendant"),
alleging causes of action for (1) Breach of Contract, (2) Breach of Implied

Warranty of Habitability, (3) Intentional Infliction of Emotional Distress, (4) Nuisance, and (5) Negligence.

On September 11, 2024, the Court dismissed the FAC pursuant to the parties' settlement and entered a stipulation to retain jurisdiction to enforce settlement pursuant to Code of Civil Procedure section 664.6.

On February 11, 2026, Plaintiff filed the instant motion to enforce settlement.

No opposition was filed.

II. LEGAL STANDARD

Enforcement of settlement agreements is governed by Code of Civil Procedure section 664.6. This statute provides, in relevant part:

If the parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.¿

(Code Civ. Proc. § 664.6(a).)

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30, 37.) Thus, to enforce a written settlement agreement under CCP section 664.6, the following three elements must be met: (1) the parties must have come to a meeting of the minds on all material points; (2) there must be a writing that contains the material terms of the agreement; and (3) the writing must be signed by the parties. (Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 797-98.)¿

The Court is empowered under this section to resolve reasonable disputes over the terms of a settlement. (Machado v. Myers (2019) 39 Cal.App.5th 779, 795.) “A trial court, when ruling on a section 664.6 motion, acts as a trier of fact. Section 664.6’s ‘express authorization for trial courts to determine whether a settlement has occurred is an implicit authorization for the trial court to interpret the terms and conditions to settlement.’” (Skulnick v. Roberts Express, Inc. (1992) 2 Cal.App.4th 884, 889 (citations omitted).) The Court does not insert provisions into the parties’ agreement, but applies the rules of contractual interpretation to interpretation of the settlement. (Id. at p. 792.) When extrinsic evidence is necessary, the Court may decide the motion on declarations alone. (Richardson v. Richardson (1986) 180 Cal.App.3d 91, 97.)

III.

DISCUSSION

Plaintiff moves for the Court to enforce the settlement agreement between the parties,

executed on March 8, 2024, which required Plaintiff to move from the Property and release her claims against Defendant in exchange for \$90,000.00. (Peterson Decl., ¶¶ 4-5, Ex. A [Settlement Agreement].) In that settlement, Defendant agreed to pay the settlement in monthly installments, the first payment of \$20,000 being due twenty days after defense counsel’s receipt of a fully executed copy of the Settlement Agreement and receipt of an executed Request for Dismissal with Prejudice, a completed W-9 form from Plaintiff’s counsel and a fully executed § 664.6 Stipulation (the “Settlement Documents”). (Id. ¶ 5.) The remaining \$70,000 was to be paid to Plaintiff as follows: \$10,00.00 on August 14, 2024; \$10,00.00 on September 14, 2024; \$10,00.00 on October 14, 2024; \$10,00.00 on November 15, 2024; \$10,00.00 on December 15, 2024; \$10,00.00 on January 15, 2025; and \$10,00.00 on February 15, 2025.

According to

Plaintiff, Defendant made the first settlement payment on September 16, 2024. (Id. ¶ 7.) Defendant then made three more installment payments of \$10,000 on November 13, 2024, February 25, 2025, and May 30, 2025. (Id. ¶ 8.) On

or about November 15, 2024, Plaintiff vacated her unit at the Subject Property.
(Id. ¶ 10.) However, Defendant ceased settlement payments completely
after May 30, 2025, paying only \$50,000.00 of the \$90,000.00 settlement amount.
(Id. ¶ 11.)

The Court finds
that it has jurisdiction to enforce the Agreement. The Agreement states that "The
Parties, by and through their counsel, agree that the Court reserves court
reserves jurisdiction to enforce the terms and conditions of the Settlement
Agreement pursuant to Code of Civil Procedure 664.6 and 1281 et seq., upon
noticed motion of any party." (Id., Ex. A at § 21.) The agreement
also is signed by all parties in the action. (Id. at p. 9.) Also, as
stated above, the Court entered a stipulation by the parties that provides that
the Court is to retain jurisdiction to make orders to enforce any and all terms
of settlement, including judgment, pursuant to Code of Civil Procedure Section
664.6. (See Sept. 11, 2024 Minute Order.)

The terms of the
agreement are specific and certain and provides that Defendant is to pay a
total of \$90,000.00 to be paid to Plaintiff on a specific payment schedule in
consideration of the Plaintiff vacating the Property releasing all claims
against Defendant. (Id. at §§ 2-4; 11.) The agreement is clear and
unambiguous as to the parties' obligations, contains all the material terms, is
in writing, and all parties have signed it.[1] Thus,
it is enforceable.

IV.

CONCLUSION

Plaintiff's motion
to enforce the Settlement Agreement is GRANTED.

Dated this 21st
day of July 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court